



Gary Weems

Mon, Aug 4, 2014 at 4:13 PM

[REDACTED]

I am writing to follow-up on the conversation we just had in the lobby of the OCME regarding your father, Gary Weems. It is my understanding that you are seeking to "ID" your father by looking at a photograph maintained at the OCME and to find an explanation for why there are 2 different numbers listed on his report. You also mentioned that you were interested in a police report. As we discussed, the OCME, pursuant to its regulations will provide a copy of its autopsy report to the legal next of kin. However, it is our practice not to disseminate documents not generated by our office such as police reports and not to disseminate decedent photographs unless such disclosure is approved by the Chief Medical Examiner. As we discussed, the DA's office has been provided with the photograph as well. As I explained, I am unable to provide you with the photograph but if you continue to be interested in seeing our copy, I would be happy to speak with the Chief to obtain approval and then we could set up a time for you to come in and view it with a medicolegal investigator.

Additionally, I did review the report per your request and noted that one page did have a different case number listed as you described. I then reviewed the medical examiner's notes related to the autopsy to confirm that the information listed on the notes was the same information that was transcribed onto that page of the report. It was and as a result, I conclude that the number was a typographical error and that the page does contain accurate

[REDACTED]

we previously sent the report to you at so that you may review them along with your copy of the report.

I would be happy to speak with you further about this issue. Additionally, if ADA Griffith would like any additional information or documents from my office so that he can better assist you, we can send those to him as well. Please let me know if you have any questions.

Sincerely,

Jacqueline Faherty

General Counsel

Tue, Aug 5, 2014 at 3:37 AM

[REDACTED]

[REDACTED]

be able to view the photo and receive a full copy of the autopsy report. He said he was contact the Chief Medical Examiner and that everything should be ok for today Tuesday the 5th. You mentioned that the docket number may have been a typo that would be great but this case has one to many typos. As for the police reports I already have the reports and the witness statement and every piece of paper has some type of typo. In the autopsy report it states my father was a dark skinned 6 foot man who weight was 190. Wrong my father was as light as me if not lighter and the man died in November so he wasn't tan. My father was 6'2 almost 6'3. Now I

know a lot about drugs and you can't possible tell me my father had enough drugs in his system. First of all there was no cocaine detected. In the police reports even in the autopsy history it says my father was drinking with his friend yet theirs non alcohol levees reported in the report. Then the place of death on the death certificate doesn't match the place of crime on the police report. And to top it off my aunt received a bill from the ambulance but know one knows where they actual brought my father. Bottom line is I know the police killed my father and for 20 years we've had problems but for me everyday I get mislead makes my case that much stronger. You know its the people in your office whose job it is to solve these cases. Instead I pay taxes so I can do the shit myself. Its a shame. People like Lisa should be willing to asset instead she's mad because she had to walk down some stairs to do her job.

All I'm saying is there's a lot of typos for a man who died of a overdose. In the first witness statement its mentioned three time my father had a wife, yet they still buried him in an unmarked grave and we didn't find out till 6 weeks after he was already buried.

Right now I already have a book deal and a movie contract in NY for this story I just have to get a conviction because I plan on saying names of everyone involved. I've been talking with a gentlemen from the Boston Globe as well. Police brutality has become such a big issue but whats said in my fathers case he was killed and the whole department is working together to hide the truth. Again a simple overdose it should have been an open and shut case but even the autopsy report says undetermined.

Anyway thank you for your time again

Sincerely
Jestina Weems
[Quoted text hidden]

[REDACTED]
Tue, Aug 5, 2014 at 6:43 AM

[REDACTED]
or do you believe an appointment was arranged at the Office of the Chief Medical Examiner?

Sent from my iPhone
[Quoted text hidden]

[REDACTED]
Tue, Aug 5, 2014 at 9:12 AM

Mr.Griffith said I was to come to your office this morning to receive the full autopsy report at that time I would like to speak with the chief Medical examiner myself as well as the detectives downstairs. I have all my documents the only thing missing is the photo which I was told by my mother who ID my father that his head is swollen if this is so it means there was sign of trauma which of course in the report it says there was not trauma. If there's no trauma and my fathers face isn't swollen then I will leave the ME out of my case. But so far everyone in your department as well as the DA's is telling my they are Identifying my father, my thing is if they never know my father how can they be the ones to ID him. The man they describe in the autopsy report is not a description of my father, so again I'm sure it just another typo.

I will be at your office around 11:30 I had to get a sitter for my son in case my time and day is yet again wasted

Sincerely
Jestina Weems
[Quoted text hidden]

[REDACTED]
Tue, Aug 5, 2014 at 10:54 AM

8/6/2014

Gmail - Gary Weems

I am not in the Office today and I am not even sure if the Chief is in. The detectives downstairs are members of Crime Scene Services and do not investigate deaths. I am unclear why you would be told to come to my office again.

Sent from my iPhone

[Quoted text hidden]

To whom it may concern

My name is Jestina Weems, daughter of the deceased Gary Jerome Weems who passed in November of 93.


Death: 11/06/1993

I am requesting the witness statements given by

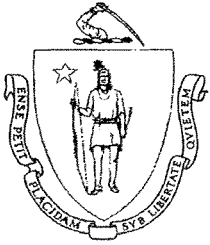
1. Kevin Purtell
2. Robert Adam
3. Kenneth Newhall

} None are Available

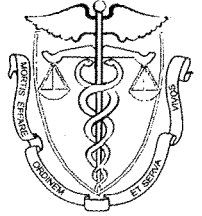
Also any officers statements that were written during that time, and if any taped or recording interviews are available that would be greatly appreciated.

Thank you in advance. I will be in the area on Tuesday the 30th, coming from NY for a few days. Please let me know if there's anything else I need to do or fees that may apply.

Sincerely
Jestina Weems-Rosenduft

The Commonwealth of Massachusetts Office of the Chief Medical Examiner



Headquarters

Deval L. Patrick
Governor

Andrea J. Cabral
Secretary of Public Safety

Henry M. Nields, MD, PhD
Chief Medical Examiner

General Office Numbers

August 4, 2014

Jestina Weems
549 4th Ave.
Brooklyn, MA 11215

Dear Ms. Weems:

Enclosed please find copies of the documents you requested. Please feel free to contact me if you have any questions.

Sincerely,

Suzan McNeil
Administrative Assistant

Enclosure

CERTIFICATE OF VITAL RECORD

VERIFY PRESENCE OF WATERMARK

HOLD TO LIGHT TO VIEW

The Commonwealth of Massachusetts

CT 4987560

CITY OF LOWELL

CERTIFICATE OF DEATH

Office of the City Clerk: **Michael Q. Geary**

Registered Number: [REDACTED]

Date of Record: **December 08, 1993**

DECEDENT

Name: **GARY JEROME WEEMS**

Date of Death: **November 06, 1993**

[REDACTED] **January 10, 1960**

Age: **33 Yrs**

Gender: **Male**

Marital Status: **Unknown**

Color/Race: **BLACK**

[REDACTED] **7 WALTER TERRACE SOMERVILLE, MA**

Name of Spouse: **--**

Occupation: **(UNKNOWN)**

Birthplace: **SOMERVILLE, MA**

Immediate Cause of Death: **OPIATE INTOXICATION**

Place of Burial or Removal: **WESTLAWN CEMETERY LOWELL, MA**

MOTHER

Maiden Name of Mother: **AUDREY MOORE**

Birthplace of Mother: **(UNKNOWN)**

FATHER

Name of Father: **DONALD WEEMS**

Birthplace of Father: **(UNKNOWN)**

I, Certify the foregoing to be a true Copy from the Record of Deaths in the City of Lowell.

WITNESS my hand and the SEAL OF THE CITY OF LOWELL
on this Tuesday, August 30, 2022.

Michael Q. Geary
Michael Q. Geary
CITY CLERK, LOWELL

VOID WITHOUT WATERMARK OR IF ALTERED OR ERASED



U.S. Department of Justice

Federal Bureau of Investigation

[REDACTED]
OCT 30 2014

Jestina Weems
549 4th Avenue
[REDACTED]

*Kristen
Setera*

Dear Ms. Weems:

I am writing in response to your August 12, 2014, letter addressed to Attorney General Eric H. Holder, Jr. which was forwarded to the FBI. You wrote regarding the death of your father, Gary Jerome Weems.

In order for the FBI to initiate an investigation of any complaint we receive, specific facts must indicate that a violation of federal law, within our investigative jurisdiction, [REDACTED] violation. Consequently, the FBI has no investigative jurisdiction.

If you have information indicating that a federal crime has been committed, you may contact the FBI's Boston Field Office, located at One Center Plaza, Suite 600, Boston, [REDACTED]

I appreciate your bringing this matter to our attention, and I hope this information will be helpful to you.

Sincerely,

Robert E. Hughes
Section Chief
Violent Criminal Threat Section

fax

Subject: Assistance with my fathers murder case

Date July 21, 2014

To: Whom it may concern

From: Jestina Weems

Phone number:

Fax number:

No. of pages

7

Comments:

My name is Jestina R. Weems I am requesting assistance with my fathers murder, which took place in 93. I have evidence that shows a conspiracy to cover my fathers murder by the Lowell police department.

If you view that following documents you will see on my fathers Death Certificate under place of death the

he was found unresponsive in his friends back yard. Then in my aunts case in 98 the police change their story once again. The case can be found online under Rebecca Judge VS. Lowell Mass.

Also in the external examination it states my father was dark skinned, low cut hair , weighed 190 and his height was 6 feet. My father wasn't dark skin, he always had a high top fade and stood 6'2.

If you look at the Results of Examination and do some converting in to grams you will see my father had one gram of Benzoylcegonine, Cocaine was non detected and the morphine was most likely given to him in the ambulance.

My father was buried 6 weeks before my family was notarized down on the 8th.

I have been trying to work with the DA's office but haven't gotten anywhere. Instead they keep asking me questions about the information I have.

The NAACP maybe the only hope I have to get justice for my father. I know this case is very old and no one wants to convict officers of the law. I saw my father the day before he was killed and he promised to show up at my 8th birthday and never made it because several officers felt like they had the right to take a mans life. My father was 33 when he was beat to death. The police just thought he was another homeless man but he was more then that he was a husband, father, brother and friend.

Thank you for your time

Sincerely

Jestina Weems

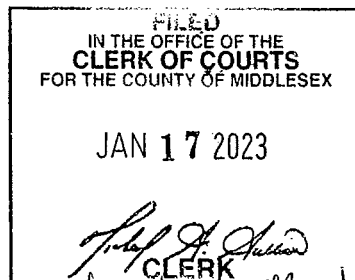


The Commonwealth Of Massachusetts

Docket No. 2381 CV00130

Jestina-Weems-Rosenduft

Plaintiff (Print Name Clearly)



Vs.

Lowell Police Department, office of chief Medical Examiner
Middlesex District Attorneys office
Defendant(s) (Print Name Clearly)

CIVIL COMPLAINT

PARTIES

1) Plaintiffs reside at 95 Dutton Ct Brooklyn NY 11229
Street City or Town

In the County of Kings County

2) Defendants reside at 50 Arcand Drive, Lowell MA, 01852, 552 Lake av
Street City or Town Worcester MA 018

In the County of _____

FACTS/BASIS FOR COMPLAINT

All parties referred to as the Defendants are
involved in the murder and cover up of my
father's Death in '93". Evidence will prove that
reports have been falsified, and the only remaining
evidence is being held by the state, which is
my father's remains.

(Middlesex
DA
office
is
Common
wealth
ave
Wobor
MA
0180

Jestina Weems-Rosenduft

01/16/2023

Vs.

Lowell Police

Lowell, MA 01852

Office of Chief Medical Examiner

Worcester, Mass 01805

Middlesex District Attorneys office

15 commonwealth Ave
Woburn Mass 01801

Claimant: Jestina Weems-Rosenduft

Date of Loss: 11/06/1993

To the clerk of the court

On this day, January 17th, 2023, on behalf of myself and the remaining next of kin of my deceased father, Gary Weems. We seek damages in the wrongful death, withhold viable evidence, and cover-up of Mr. Weems death on November 6, 1993.

On the night in question, Gary Weems and his friend Kenneth Newhall had been drinking up and around Appleton st. and Summers st. My father and Mr. Newhall were waiting for my mother to get off work. According to Mr. Newhall's police statement and the statement he gave my mother, both my father and Mr. Newhall were approached by local police three times before my father's death. The third time they encountered the police, they were behind the old unemployment building. My father, who was now intoxicated, did not move fast enough for the officers and was struck on the back of the head with one of the officer's billy-club, causing my father's death.

At the time, the police department and chief medical examiner felt no need to contact our family. Giving them ample time to falsify my father's autopsy report, death certificate and bury my father's remains without being adequately investigated. It took our family six weeks to discover my father's passing, and since then, we have been asking the state to return my father's remains so that he can be buried with family. But before doing so, we're requesting a DNA test of the remains and a second autopsy to examine Mr. Weems's skull to prove the cause of death.

It has come to my attention as of 01/13/2023 that the Middlesex District Attorney's office is also playing a significant role in falsifying and losing evidence involving this case. After a recent visit, I was told that their office has no knowledge of my father's case and they have nothing on file. I have evidence that shows the DA's office was involved at least once in 2014. They should have been notified in 1996 when my aunt, who has now passed, brought a civil rights suit against the city of Lowell. Also in 1995 when my mother pursued a claim against the Lowell police department, and medical examiners office for failure to notify. I personally have evidence of our interactions but for some reason, the state has no recollection, and every department has failed to document and file all these interactions or claims made.

It wasn't until September of 2022, when I received the police reports from the Lowell Police, that I noticed the inconsistency in all the police reports aligned with the original witness statement from Mr. Newhall, where he mentioned they encountered police minutes before my father's passing. New evidence also shows that since my father's death, the pathologist Gerald Feigin has been investigated for tampering with evidence and falsifying paperwork in several states.

Gary Weems was a husband, father, brother, and uncle. What I miss most about my father is his smile and how special he made me feel on my birthdays. My father wasn't perfect, but I will remember him as a generous, caring, and loving dad who will be greatly missed. As determined by the feelings expressed on behalf of myself and my family, the requested compensation for this wrongful death claim is itemized on the following page.

<i>Funeral Expenses at Saint Paul A.M.E</i>	<i>\$5,026.00</i>
<i>Private Detective</i>	<i>\$154,032</i>
<i>Anthropologist</i>	<i>\$75,0679</i>
<i>McDonough funeral home</i>	<i>\$15,111</i>
<i>Exhume Body</i>	<i>\$25,042</i>
<i>DNA Test</i>	<i>\$3,583</i>
<i>Pain & Suffering of the Decedent</i>	
Total	

I appreciate a timely response of no more than 30 days past the date of this letter.

Sincerely,

Jestina Weems-Rosenduft

On November 6th, 1993, my father was accidentally killed by a Lowell police officer after a blow to the back of his head from an officer's billy club. I am his only next of kin; at the time, I was only eight years old. Over the last eight years, I have tried vigorously to obtain my father's remains, which are buried at West Lawn Cemetery in Lowell, Mass, as a John Doe. Though several Presidents have advised the FBI to help our family retrieve his remains, nothing has been done to assist our efforts further to relocate him to a family plot in Cambridge, Mass.

I do understand my father's case is sensitive due to the nature of his death; but how long must our family suffer due to the negligence of the Lowell Police Department, the coroner's office, and the city of Lowell for trying to cover up my father's death, as if he had no family who cared. Though my father had a pocket of identification and a friend who gave a witness statement stating he had a wife and kids, our family was never notified about his death. It took my mother six weeks to learn of my father's passing after searching for him, just to find out he was a victim of police brutality. Though my mother had the truth, society wasn't in the frame of mind to believe that police sometimes kill innocent people. It wasn't until the passing of George Floyd that society realized a truth I've been living with for almost thirty years, and the only justice I would like and feel my family desires at this time is for my father's remains to be returned to us, at no cost to us.

It has come to my attention that our family would not be able to exhume my father without the Approval of the state or judge. I am also asking that the Lowell Police cover the following cost Department; (To exhume the remains, DNA analysis, forensic anthropologist, and reburial)

I am also requesting for the judge to help us obtain the following evidence in question; (The case file for the CIB office, crime scene photos, and original witness statements from Kenneth Newhall, Kevin Purtell, and Robert Adams)

~~I have new evidence to prove that the following officers were involved in the~~ killing and cover-up of my father's murder Gary Jerome Weems. The officers are; Daniel R. Brady, badge number #153; sergeant William M. Taylor, badge number #72; L. Hunter, badge number #126, Sgt. B. Chevalig, badge number #103, and officer Dolan, badge number #90.

In 2014 I was given witness statements from the Lowell Prosecutions office, which revealed a lot but not as much as the police statements I recently received in October of this year. When comparing my father's autopsy report with the police statements and witness states, the evidence will prove that the reason the officer's reports are inconsistent is not due to sloppy police work like my family has been told but because, as Kenneth Newhall states in his witness statement that police ask them to move several times before my fathers passing. In his statement, Mr. Newhall mentions the exact street names he and my father encountered the police. I have several police statements matching the

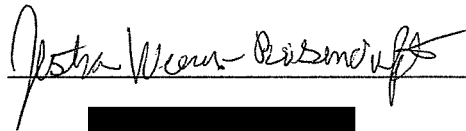
streets Mr.Newhall says in his statement. In each police report, the time of death is prior to the autopsy's reported time of death from the coroner's office.

Because Mr.Newhall was a friend of both of my parents, my mother found out the truth from Kenneth Newhall and former officer Scott Swindel, who worked as a Lowell police officer at the time. The incident had nothing to do with race, and the officer wasn't trying to kill my father; what happened was, after being asked to relocate for the third time, my father, who was drunk, would not move fast enough and was hit on the back of the head, causing him to fall face down. The blow to the back of his head fractured his skull and killed him. When Kenneth returned several hours later to the back of the unemployment building, my father was still lying there surrounded by police. Shortly after, Mr. Newhall was escorted to the station to give his statement. I'm not saying my father was perfect, but he was still my father, who was only 33 years old at the time. There's still so much more he could have done in his life if a little mercy and grace had been shown at that time. My father may not get the justice and peace he deserves, but I pray I do.

The Commonwealth Of Massachusetts

I am requesting a full investigation, and the remains of my father be returned to me.

SIGNED UNDER THE PAINS AND PENALTIES OF PERJURY:




DATED:

1/12/2023